

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
**JAMEL DAVIS, NESTOR VENTURA
STEPHEN SCRUBB, COURTNEY PEREZ,
TROY CAMPBELL, DAVONNE RAGIN,
KEINAYA RICHARDS, LASHEA SUGGS,
KAYMAY PHILLIP,**

Plaintiffs,

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER SKEHILL
(Tax Registry No. 953413),
POLICE OFFICER V. RUGOVA
(Tax Registry No. 951113),
POLICE OFFICERS JOHN DOE 1-4,**
Defendants.

Index No. _____
Purchased _____

Plaintiffs designates Bronx
County as the place of trial

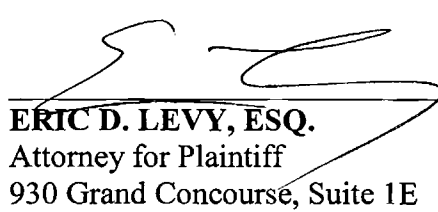
The basis of the venue is
where the tort arose

SUMMONS

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 30, 2018


ERIC D. LEVY, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(646) 755-8020

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
**JAMEL DAVIS, NESTOR VENTURA
STEPHEN SCRUBB, COURTNEY PEREZ,
TROY CAMPBELL, DAVONNE RAGIN,
KEINAYA RICHARDS, LASHEA SUGGS,
KAYMAY PHILLIP,**

Plaintiffs,

Index No.

Complaint

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER SKEHILL
(Tax Registry No. 953413),
POLICE OFFICER V. RUGOVA
(Tax Registry No. 951113),
POLICE OFFICERS JOHN DOE 1-4,**
Defendants.

-----X
Plaintiffs JAMEL DAVIS, NESTOR VENTURA, STEPHEN SCRUBB, COURTNEY PEREZ, TROY CAMPBELL, DAVONNE RAGIN, KEINAYA RICHARDS, LASHEA SUGGS, and KAYMAY PHILLIP [hereinafter PLAINTIFFS], each by their attorney ERIC D. LEVY, ESQ., principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JAMEL DAVIS ("MR. DAVIS") was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff NESTOR VENTURA ("MR. VENTURA") was a resident of Bronx County, City and State of New York.
3. At all times hereinafter mentioned, Plaintiff STEPHEN SCRUBB ("MR. SCRUBB") was a resident of Bronx County, City and State of New York.
4. At all times hereinafter mentioned, Plaintiff COURTNEY PEREZ ("MS. PEREZ") was a resident of Bronx County, City and State of New York.

5. At all times hereinafter mentioned, Plaintiff TROY CAMPBELL ("MS. VENTURA") was a resident of Bronx County, City and State of New York.

6. At all times hereinafter mentioned, Plaintiff NESTOR VENTURA ("MR. CAMPBELL") was a resident of Bronx County, City and State of New York.

7. At all times hereinafter mentioned, Plaintiff DAVONNE RAGIN ("MR. RAGIN") was a resident of Bronx County, City and State of New York.

8. At all times hereinafter mentioned, Plaintiff KEINAYA RICHARDS ("MS. RICHARDS") was a resident of Bronx County, City and State of New York.

9. At all times hereinafter mentioned, Plaintiff LASHEA SUGGS ("MS. SUGGS") was a resident of Bronx County, City and State of New York.

10. At all times hereinafter mentioned, Plaintiff KAYMAY PHILLIP ("MR. PHILLIP") was a resident of Bronx County, City and State of New York.

11. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

12. At all times hereinafter mentioned, Defendant POLICE OFFICER SKEHILL (Tax No. 953413), ("SKEHILL") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

13. At all times hereinafter mentioned, Defendant POLICE OFFICER V. RUGOVA (Tax No. 951113), ("RUGOVA") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

14. At all times hereinafter mentioned, Defendant POLICE OFFICERS JOHN DOE 1-4 were and still police officers employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

15. On and prior to January 28, 2017, SKEHILL, RUGOVA AND DOE were employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

16. The actions of SKEHILL, RUGOVA AND DOE described herein were performed within the scope of their employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

17. On or about January 28, 2017, SKEHILL, RUGOVA AND DOE, acting as an agent, servant and employee of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused PLAINTIFFS of having committed the violation of Disorderly Conduct (P.L. sec. 240.20).

18. On or about January 28, 2017, Defendants, their agents, servants and/or employees, intentionally placed PLAINTIFFS under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

19. After their arrest on January 28, 2017, PLAINTIFFS were taken to the 46 precinct and interrogated by multiple detectives and officers and were ultimately released approximately 12 hours later and issued a summons for disorderly conduct.

20. As a result of the treatment of PLAINTIFFS by the Defendants, PLAINTIFFS were denied liberty by being falsely arrested and imprisoned for approximately TWELVE HOURS.

21. PLAINTIFFS suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained, PLAINTIFFS suffered humiliation, fear for their safety and other emotional distress.

PROCEDURAL POSTURE

22. Plaintiffs served a Notice of Claim in writing sworn to on their behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

23. More than thirty days have elapsed since service of said notice, and

Defendant CITY has failed to pay or adjust the claim.

24. This action has been commenced within one year and ninety days after the cause of actions of PLAINTIFFS accrued.

25. PLAINTIFFS have duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

26. Paragraphs 1-25 are incorporated by reference as fully set forth herein.

27. On January 28, 2017 at approximately 2:45 a.m., in the vicinity of 1789 Webster Avenue, Bronx County, Defendant SKEHILL, RUGOVA AND DOE wrongfully touched, grabbed, handcuffed and seized PLAINTIFFS, in an excessive manner about their person, causing PLAINTIFFS physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiffs.

28. PLAINTIFFS were aware of their arrest and confinement as described in paragraphs 1-27, and he did not consent to that arrest or confinement, nor was it privileged by law.

29. As a result of being falsely arrested by the Defendants, PLAINTIFFS sustained multiple injuries. Plaintiffs were denied liberty and the ability to enjoy life. They also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. The Defendants, their agents, servants and employees, arrested and confined PLAINTIFFS, as described in paragraphs 1-30, and intended to confine PLAINTIFFS. PLAINTIFFS were conscious of their confinement and did not consent to it; moreover, the confinement was not privileged or authorized by any warrant, order,

or other legal right.

32. As a result of being falsely imprisoned by the Defendants, PLAINTIFFS sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.

34. In arresting PLAINTIFFS, SKEHILL, RUGOVA AND DOE, acting in their capacity as an agent, servant and employee of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse, specifically PLAINTIFFS were arrested without probable cause and for the sole purpose of being interrogated by DOES 1-4, regarding a shooting earlier in the evening.

35. In arresting PLAINTIFFS, SKEHILL, RUGOVA AND DOE, acting in their capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to PLAINTIFFS or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest; specifically, DEFENDANTS attempted through fear and intimidation to gain knowledge from plaintiffs without any legal justification and when DEFENDANTS were through interrogating PLAINTIFFS, each PLAINTIFF was issued a summons for disorderly conduct and released some twelve hours after initially being falsely arrested.

36. As a result of the abuse of process by the Defendants, PLAINTIFFS sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

FOURTH CAUSE OF ACTION ASSAULT AND BATTERY

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.

38. On January 28, 2017, at approximately 2:45 am in the vicinity of 1789 Webster Avenue, in Bronx County, Defendant SKEHILL, RUGOVA AND DOE along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized PLAINTIFFS, in an excessive manner about their person, causing PLAINTIFFS physical pain and mental suffering.

39. That on or about January 28, 2017, and while in the custody of the defendants in the County of Bronx, City of New York, the PLAINTIFFS were intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by SKEHILL, RUGOVA AND DOE, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiffs.

40. That on or about January 28, 2017, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter PLAINTIFFS, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to PLAINTIFFS and their act caused apprehension of such contact in the plaintiffs, and in a hostile and/or offensive manner intentionally touched the plaintiffs and/or made offensive bodily contact to PLAINTIFFS and caused such battery in and about their chest, body and limbs. At no time did PLAINTIFFS consent to the aforesaid assault and battery.

41. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and grabbing of

PLAINTIFFS, was an assault and battery beyond that which was necessary to make the arrests.

42. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular SKEHILL, RUGOVA AND DOE, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, PLAINTIFFS suffered bodily injury in and about their body and limbs and suffered conscious pain and suffering, and that they were otherwise damaged.

FIFTH CAUSE OF ACTION

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. Defendant SKEHILL, RUGOVA AND DOE were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

45. At all times mentioned herein, SKEHILL, RUGOVA AND DOE were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

46. Plaintiffs are and at all times relevant herein, are citizens of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42 United States Code, section 1988.

47. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

48. On or about January 28, 2017 the Defendants, armed police, while effectuating the seizure of the Plaintiffs did search, seize, assault and grab the person of

Plaintiffs without a court authorized arrest warrant. They did physically seize the person of Plaintiffs during the arrest process in an unlawful and excessive manner. Plaintiffs were falsely arrested and maliciously prosecuted without the Defendants possessing probable cause; SPECIFICALLY, defendants RUGOVA, SKEHILL AND DOE detained and arrested plaintiffs without probable cause to believe that any of the plaintiffs committed a crime or violation, but for the sole purpose of illegally interrogating each plaintiff at the 46 precinct regarding an incident that no defendant reasonably thought any of the plaintiffs were involved.

49. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to their person;
- b. Freedom from battery to their person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

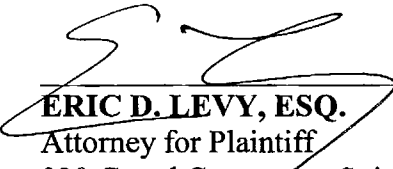
50. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United State Constitution and that it was and is still the practice of NYPD to disregard the rights of individuals under the fourth and fourteenth amendments to the United States Constitution when entering homes without consent.

51. The direct and proximate result of the Defendants' acts are that Plaintiffs have suffered severe and permanent injuries of a psychological nature. Each was forced to endure pain and suffering, all to their detriment.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
March 30, 2018

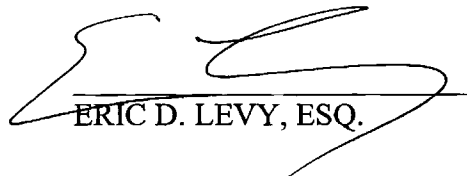
Yours, etc.,


ERIC D. LEVY, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
646-755-8020

CERTIFICATION

I, ERIC D. LEVY, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



ERIC D. LEVY, ESQ.